

# Terms of Service

## **t1Classifieds**

*Operated by RedA1, LLC*

*Effective Date: May 2026*

*Last Updated: May 2026*

## **1. Acceptance of Terms**

Welcome to t1Classifieds (the "Service," "Platform," "we," "us," or "our"), operated by RedA1, LLC, a Utah limited liability company. These Terms of Service ("Terms") constitute a legally binding agreement between you ("User," "you," or "your") and RedA1, LLC governing your access to and use of t1Classifieds, including all content, listings, features, and services made available through our website and any related applications.

BY CHECKING THE "I AGREE" BOX, CREATING AN ACCOUNT, ACCESSING, OR USING THE SERVICE IN ANY WAY, YOU ACKNOWLEDGE THAT YOU HAVE READ, UNDERSTOOD, AND AGREE TO BE BOUND BY THESE TERMS AND OUR PRIVACY POLICY. IF YOU DO NOT AGREE TO THESE TERMS, DO NOT USE THE SERVICE.

**PLEASE NOTE: These Terms contain a binding arbitration clause and class-action waiver in Section 12. By accepting these Terms, you agree to resolve disputes through individual arbitration and waive your right to participate in class actions, except as expressly provided.**

## **2. Eligibility**

You represent and warrant that:

- You are at least eighteen (18) years of age, or the age of legal majority in your jurisdiction, whichever is greater;
- You have the legal capacity to enter into a binding contract;
- Your use of the Service does not violate any applicable law or regulation;
- All information you provide is accurate, truthful, current, and complete; and
- You have not been previously suspended or removed from the Service.

## **3. Account Registration and Security**

To access certain features of the Service, you must create an account. You agree to:

- Provide accurate, current, and complete information during registration;
- Maintain and promptly update your account information;
- Maintain the security of your password and account credentials;
- Accept all risks of unauthorized access to your account; and
- Notify us immediately of any unauthorized use or security breach.

You are solely responsible for all activities that occur under your account. RedA1, LLC is not liable for any loss or damage arising from your failure to safeguard your account credentials.

## **4. User Content, Photo Ownership, and License Grant**

## 4.1 Definition of User Content

"User Content" means any and all content, including but not limited to text, photographs, images, videos, graphics, listings, descriptions, reviews, comments, links, and any other materials that you submit, upload, post, display, publish, or otherwise transmit through the Service.

## 4.2 Your Representations and Warranties Regarding User Content

BY UPLOADING, POSTING, OR SUBMITTING ANY USER CONTENT TO THE SERVICE, YOU EXPRESSLY REPRESENT, WARRANT, AND CERTIFY THAT:

- **Sole Ownership:** You are the sole and exclusive owner of all User Content you submit, OR you have obtained all necessary licenses, rights, consents, releases, and permissions from the rightful owner(s) to submit, distribute, and grant the licenses described in these Terms;
- **Photos You Take Yourself:** Any photographs you upload were taken by you personally, OR you have obtained explicit written permission from the photographer and any individuals depicted to upload and distribute such images on the Service;
- **No Third-Party Rights Violation:** Your User Content does not and will not infringe, misappropriate, or violate any third party's intellectual property rights, including copyright, trademark, patent, trade secret, moral rights, rights of publicity, rights of privacy, or any other proprietary rights;
- **No Stolen Content:** Your User Content has not been copied, downloaded, scraped, screenshotted, or otherwise obtained from any other website, social media platform, advertisement, real estate listing service, or any other source;
- **Lawful Content:** Your User Content complies with all applicable laws, regulations, and these Terms;
- **Accuracy:** All information in your listings is truthful, accurate, and not misleading;
- **Authority to Sell:** For listings offering goods or services, you have legal authority and right to sell, transfer, or offer the items or services described.

## 4.3 Limited License Grant to RedA1, LLC

**You retain ownership of your User Content.** However, by submitting User Content to the Service, you grant RedA1, LLC a limited, worldwide, non-exclusive, royalty-free, sublicensable, and transferable license to host, store, cache, use, reproduce, display, perform, distribute, modify (solely for technical purposes such as resizing or formatting), adapt, and create derivative works of your User Content solely for the purposes of:

- Operating, providing, and improving the Service;
- Displaying your listings to other Users and the public;
- Marketing and promoting the Service; and
- Complying with legal obligations.

**This license is a temporary, limited grant for the operational purposes of the Service only.** RedA1, LLC does not claim ownership of your User Content. This license terminates when you remove your User Content from the Service, except to the extent that (a) the content has been shared with others who have not deleted it, (b) backup copies exist in our routine backup systems, or (c) we are required to retain the content to comply with legal obligations.

## 4.4 Disclaimer of Liability for User Content

YOU ACKNOWLEDGE AND AGREE THAT:

- RedA1, LLC is not the author, publisher, or originator of User Content. We are an interactive computer service provider as defined under 47 U.S.C. § 230 (Section 230 of the Communications Decency Act);
- RedA1, LLC does not pre-screen, monitor, or verify User Content and has no obligation to do so;
- RedA1, LLC bears no responsibility for the accuracy, legality, ownership, or appropriateness of any User Content;
- You—not RedA1, LLC—are solely and entirely responsible for all User Content you submit and any consequences arising from such submission, including but not limited to legal claims, damages, fines, or penalties.

## 5. Prohibited Conduct and Content

You agree NOT to use the Service to post, upload, transmit, or engage in any of the following:

- Content that infringes any copyright, trademark, or other intellectual property right;
- Photographs or images you did not personally take or do not have explicit permission to use;
- Stolen, fraudulent, counterfeit, or illegally obtained goods;
- Weapons, firearms, ammunition, explosives, or related accessories prohibited by law;
- Illegal drugs, controlled substances, drug paraphernalia, or prescription medications;
- Tobacco, e-cigarettes, vaping products, or alcohol where prohibited;
- Adult content, pornography, sexual services, or sexually explicit material;
- Content involving human trafficking, exploitation, or solicitation;
- Content that exploits or harms minors in any way;
- Live animals (except in compliance with all applicable laws), endangered species, or animal products prohibited by law;
- Hazardous materials, radioactive substances, or toxic chemicals;
- Multi-level marketing schemes, pyramid schemes, or fraudulent business opportunities;
- Spam, repetitive postings, or any automated/bot-generated listings;
- Hateful, discriminatory, harassing, defamatory, threatening, or violent content;
- False, misleading, or deceptive listings or advertisements;
- Content that violates any local, state, federal, or international law;
- Personal information of any individual without their explicit consent;
- Malicious code, viruses, malware, or any content intended to disrupt the Service;
- Activity designed to bypass, manipulate, or exploit our systems, fees, or policies.

## 6. Copyright Policy and DMCA Compliance

RedA1, LLC respects intellectual property rights and complies with the Digital Millennium Copyright Act (DMCA), 17 U.S.C. § 512.

**DMCA Registration Number: DMCA-1072922**

RedA1, LLC is registered with the U.S. Copyright Office DMCA Designated Agent Directory.

### 6.1 Reporting Copyright Infringement

If you believe your copyrighted work has been used or copied on the Service in a way that constitutes copyright infringement, please submit a DMCA takedown notice to our designated agent containing:

- A physical or electronic signature of the copyright owner or authorized representative;
- Identification of the copyrighted work claimed to have been infringed;

- Identification of the infringing material and its location on the Service (specific URL);
- Your contact information (name, address, phone, email);
- A good-faith statement that the use is not authorized by the copyright owner, its agent, or the law; and
- A statement, under penalty of perjury, that the information is accurate and you are authorized to act on behalf of the copyright owner.

**DMCA Designated Agent:**

Rory Hoffman – DMCA Agent  
 RedA1, LLC  
 12760 S Park Ave, Suite 1127  
 Riverton, UT 84065  
 Email: legal@reda1.com

## 6.2 Repeat Infringer Policy

We will terminate, in appropriate circumstances, the accounts of Users who are determined to be repeat infringers of copyright or other intellectual property rights.

## 7. Indemnification

YOU AGREE TO INDEMNIFY, DEFEND, AND HOLD HARMLESS RedA1, LLC, its parent, subsidiaries, affiliates, officers, directors, members, managers, employees, agents, contractors, licensors, and service providers (collectively, the "Indemnified Parties") from and against any and all claims, liabilities, damages, losses, costs, expenses, and fees (including reasonable attorneys' fees) arising out of or relating to:

- Your User Content, including any allegation that your User Content infringes any third party's intellectual property rights, rights of privacy, rights of publicity, or other rights;
- Your use or misuse of the Service;
- Your violation of these Terms;
- Your violation of any law or regulation;
- Your violation of any third party's rights;
- Any dispute or transaction between you and another User;
- Any false statement, misrepresentation, or fraudulent activity by you.

RedA1, LLC reserves the right, at its own expense, to assume the exclusive defense and control of any matter otherwise subject to indemnification by you, in which event you will cooperate with RedA1, LLC in asserting any available defenses.

## 8. Cooperation with Law Enforcement and Disclosure of User Information

YOU EXPRESSLY ACKNOWLEDGE, CONSENT TO, AND AGREE THAT:

- **Cooperation with Authorities:** RedA1, LLC may, at its sole discretion and without notice to you, disclose your account information, identity, IP address, location data, communications, User Content, transaction history, and any other information about you or your activities to law enforcement officials, government agencies, regulatory bodies, courts, or other third parties when we believe in good faith that such disclosure is necessary or appropriate;
- **Reasons for Disclosure:** Such disclosure may occur to: (a) comply with subpoenas, court orders, warrants, legal processes, or governmental requests; (b) investigate or respond to suspected illegal activity; (c) report suspected violations of law; (d) protect

the rights, property, or safety of RedA1, LLC, our Users, or the public; (e) prevent fraud or harm; or (f) for any other lawful purpose;

- **Local Authorities:** If we receive reports or have reason to believe that your User Content, listing, or activity involves stolen property, fraud, copyright infringement, trafficking, exploitation, or any other illegal activity, your information—including identifying information, contact details, IP addresses, and listing content—may be forwarded to local, state, federal, or international authorities;
- **No Notification Obligation:** RedA1, LLC has no obligation to notify you before or after disclosing your information to authorities, except where required by law;
- **Waiver of Claims:** You waive any claims against RedA1, LLC arising from such disclosure and acknowledge that RedA1, LLC bears no liability for cooperating with law enforcement or governmental authorities.

## 9. Disclaimers and No Warranty

THE SERVICE IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, RedA1, LLC DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, ACCURACY, AND TITLE.

RedA1, LLC does not warrant that: (a) the Service will be uninterrupted, secure, or error-free; (b) defects will be corrected; (c) the Service is free of viruses or harmful components; (d) any User Content is accurate, reliable, or lawful; or (e) any transaction conducted through the Service will be successful.

RedA1, LLC is not a party to any transaction between Users. We do not verify the identity, legitimacy, legal status, or qualifications of any User, listing, or item. You interact with other Users at your own risk.

## 10. Limitation of Liability

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL RedA1, LLC OR ITS AFFILIATES, OFFICERS, DIRECTORS, MEMBERS, EMPLOYEES, AGENTS, OR LICENSORS BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, DATA, USE, GOODWILL, OR OTHER INTANGIBLE LOSSES, ARISING OUT OF OR RELATED TO YOUR USE OF, OR INABILITY TO USE, THE SERVICE. IN NO EVENT SHALL RedA1, LLC'S TOTAL CUMULATIVE LIABILITY TO YOU FOR ALL CLAIMS ARISING OUT OF OR RELATING TO THESE TERMS OR THE SERVICE EXCEED THE GREATER OF (A) ONE HUNDRED U.S. DOLLARS (\$100.00) OR (B) THE AMOUNT YOU PAID TO RedA1, LLC IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

Some jurisdictions do not allow the exclusion or limitation of certain damages, so the above limitations may not apply to you.

## 11. Termination and Suspension

RedA1, LLC reserves the right, at its sole discretion and without prior notice or liability, to suspend, terminate, restrict, or delete your account and access to the Service for any reason, including but not limited to:

- Violation of these Terms;
- Conduct that we believe is harmful, unlawful, or inappropriate;
- Inactivity for an extended period;
- Any other reason at our sole discretion.

Upon termination, your right to use the Service ceases immediately. Provisions of these Terms that by their nature should survive termination (including but not limited to ownership, warranty disclaimers, indemnification, and limitations of liability) shall survive.

## **12. Dispute Resolution, Binding Arbitration, and Class-Action Waiver**

**PLEASE READ THIS SECTION CAREFULLY. IT REQUIRES YOU TO RESOLVE DISPUTES THROUGH INDIVIDUAL BINDING ARBITRATION AND LIMITS THE MANNER IN WHICH YOU CAN SEEK RELIEF FROM RedA1, LLC. IT ALSO WAIVES YOUR RIGHT TO A JURY TRIAL AND YOUR RIGHT TO PARTICIPATE IN CLASS ACTIONS.**

### **12.1 Governing Law**

These Terms and any dispute arising out of or related to these Terms or the Service shall be governed by and construed in accordance with the laws of the State of Utah, without regard to its conflict of law principles. The United Nations Convention on Contracts for the International Sale of Goods does not apply to these Terms.

### **12.2 Informal Dispute Resolution**

Before initiating arbitration, you and RedA1, LLC agree to first attempt to resolve any dispute informally. You must send a written notice describing the dispute, your contact information, and the relief sought to legal@reda1.com or to RedA1, LLC at 12760 S Park Ave, Suite 1127, Riverton, UT 84065. The parties agree to negotiate in good faith for at least sixty (60) days from receipt of such notice before initiating formal proceedings.

### **12.3 Binding Arbitration**

If informal resolution fails, you and RedA1, LLC agree that any and all disputes, claims, or controversies arising out of or relating to these Terms, the Service, or your use of the Service (collectively, "Disputes") shall be resolved exclusively through final and binding individual arbitration, rather than in court, except as provided below.

**Arbitration Rules and Forum:** The arbitration shall be administered by JAMS (Judicial Arbitration and Mediation Services) under its Streamlined Arbitration Rules and Procedures in effect at the time arbitration is initiated. The JAMS rules are available at [www.jamsadr.com](http://www.jamsadr.com). If JAMS is unavailable, the parties shall mutually agree to another arbitration provider, or, failing such agreement, a court of competent jurisdiction shall select the provider.

**Location:** The arbitration shall take place in Salt Lake County, Utah, or remotely via videoconference at the arbitrator's discretion, unless the parties agree otherwise. For claims under \$10,000, the arbitration may be conducted entirely through written submissions at your election.

**Arbitrator's Authority:** The arbitrator shall have exclusive authority to resolve all Disputes, including any claim that all or part of this arbitration agreement is unenforceable. The arbitrator's decision shall be final and binding, and judgment may be entered in any court of competent jurisdiction.

**Costs:** Each party shall bear its own attorneys' fees and costs, except as required by applicable law or the arbitrator's award. Arbitration filing fees shall be allocated as provided by the JAMS rules.

**Federal Arbitration Act:** This arbitration agreement is governed by the Federal Arbitration Act (9 U.S.C. §§ 1-16) and evidences a transaction involving interstate commerce.

#### **12.4 Class-Action Waiver**

**YOU AND RedA1, LLC AGREE THAT EACH PARTY MAY BRING CLAIMS AGAINST THE OTHER ONLY ON AN INDIVIDUAL BASIS, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, COLLECTIVE, REPRESENTATIVE, OR CONSOLIDATED ACTION.** The arbitrator may not consolidate more than one person's claims, may not preside over any form of class or representative proceeding, and may not award class-wide relief. If this class-action waiver is found unenforceable, then the entirety of this Section 12 (Dispute Resolution) shall be null and void, but the remainder of these Terms shall remain in full force.

#### **12.5 Exceptions to Arbitration**

Notwithstanding the above, the following claims are NOT subject to mandatory arbitration:

- **Small Claims Court:** Either party may bring an individual action in small claims court for disputes within that court's jurisdiction, provided the action remains in that court and is not removed or appealed to a court of general jurisdiction;
- **Injunctive Relief:** Either party may seek injunctive or equitable relief in a court of competent jurisdiction to prevent the actual or threatened infringement, misappropriation, or violation of intellectual property rights or unauthorized access to the Service;
- **Enforcement of Arbitration Award:** Either party may bring an action in a court of competent jurisdiction to compel arbitration or enforce an arbitration award.

#### **12.6 30-Day Right to Opt Out of Arbitration**

You have the right to opt out of the arbitration agreement and class-action waiver in this Section 12. To opt out, you must send written notice to RedA1, LLC at legal@reda1.com within thirty (30) days of first accepting these Terms, including your full name, account email, mailing address, and a clear statement that you wish to opt out of arbitration. Opting out will not affect any other provision of these Terms. If you opt out, all disputes shall be resolved in the courts identified in Section 12.7.

#### **12.7 Court Jurisdiction for Excluded Claims**

For any claim not subject to arbitration (whether by exception, opt-out, or invalidation of the arbitration agreement), the parties consent to the exclusive jurisdiction and venue of the state and federal courts located in Salt Lake County, Utah.

#### **12.8 Jury Trial Waiver**

**TO THE EXTENT PERMITTED BY LAW, YOU AND RedA1, LLC WAIVE ANY RIGHT TO A JURY TRIAL IN ANY DISPUTE NOT SUBJECT TO ARBITRATION.**

#### **12.9 Time Limitation**

Any claim arising out of or related to these Terms or the Service must be filed within one (1) year after such claim arose; otherwise, the claim is permanently barred.

#### **12.10 Severability of This Section**

If any provision of this Section 12 is found unenforceable, that provision shall be severed and the remaining provisions shall remain in effect, except as provided in Section 12.4 regarding the class-action waiver.

## 13. Changes to These Terms

RedA1, LLC reserves the right to modify these Terms at any time. We will provide notice of material changes by posting the updated Terms on the Service and updating the "Last Updated" date. Your continued use of the Service after such changes constitutes your acceptance of the modified Terms. If you do not agree to the modified Terms, you must stop using the Service.

## 14. Privacy Policy

Your use of the Service is also governed by our Privacy Policy, which is incorporated into these Terms by reference. By using the Service, you consent to the collection, use, and sharing of your information as described in the Privacy Policy.

## 15. Miscellaneous

- **Entire Agreement:** These Terms, together with the Privacy Policy, constitute the entire agreement between you and RedA1, LLC regarding the Service.
- **Severability:** If any provision is found unenforceable, the remaining provisions remain in full force and effect.
- **No Waiver:** Failure to enforce any provision does not constitute a waiver of that provision.
- **Assignment:** You may not assign these Terms without our prior written consent. RedA1, LLC may freely assign these Terms.
- **No Agency:** No agency, partnership, joint venture, or employment relationship is created by these Terms.
- **Headings:** Section headings are for convenience only and do not affect interpretation.

## 16. Contact Information

For questions about these Terms or the Service, please contact:

**RedA1, LLC**

d/b/a t1Classifieds

12760 S Park Ave, Suite 1127

Riverton, UT 84065

Email: [legal@reda1.com](mailto:legal@reda1.com)

DMCA Registration: DMCA-1072922

## 17. Acknowledgment

**BY CHECKING THE BOX BELOW AND CLICKING "CREATE ACCOUNT" (OR EQUIVALENT), YOU CONFIRM THAT:**

- You have read and understood these Terms of Service in full, including the binding arbitration agreement and class-action waiver in Section 12;
- You agree to be legally bound by these Terms;

- You confirm that all photographs and content you will upload belong to you or that you have explicit permission to use them;
- You understand that submitting content you do not own may result in account termination, legal action, and referral to law enforcement;
- You consent to the disclosure of your information to authorities under the circumstances described herein;
- You understand you have thirty (30) days to opt out of the arbitration agreement by following the procedure in Section 12.6.

**— END OF TERMS OF SERVICE —**